

**PLACER COUNTY SUPERIOR COURT
THURSDAY, CIVIL LAW AND MOTION
DEPARTMENT 3
THE HONORABLE MICHAEL W. JONES
TENTATIVE RULINGS FOR JULY 16, 2026, AT 8:30 A.M.**

4. S-CV-0055748 LAEZMAN, LINDA v. EL DON ESTATES

Defendant El Don Estates Homeowners Association's Demurrer to Plaintiff's First Amended Complaint

Preliminary Matters

The court notes plaintiffs' opposition is untimely because it was filed six days after the deadline. (Cal. Rules of Court, rule 3.1300, subd. (d).) The court observes this is the second time that plaintiffs filed an untimely opposition and admonishes plaintiffs to comply with the applicable filing deadlines for future filings. The court further notes plaintiff fails to acknowledge or address the late filing. Continued violations may result in any type of applicable sanctions.

Defendant's request for judicial notice is granted.

Ruling on Demurrer

Defendant demurs to plaintiffs' first amended complaint ("FAC") on the grounds the complaint does not allege facts sufficient to state the causes of action and the complaint is uncertain. A demurrer tests the legal sufficiency of the pleading, not the truth of the plaintiff's allegations or accuracy of the described conduct. (*Bader v. Anderson* (2009) 179 Cal.App.4th 775, 787.) The allegations in the pleading are deemed to be true no matter how improbable the allegations may seem. (*Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal.App.3d 593, 604.) However, "[i]f the allegations in the complaint conflict with the exhibits, we rely on and accept as true the contents of the exhibits." (*SC Manufactured Homes, Inc. v. Liebert* (2008) 162 Cal.App.4th 68, 83.) The court, however, does not accept the truth of contentions, deductions, or conclusions of law. (*Genesis Environment Services v. San Joaquin Valley Unified Air Pollution Control District* (2003) 113 Cal.App.4th 597, 603.)

Defendant first argues the complaint fails because defendant's alleged actions and omissions fall within the business judgment rule. This rule applies to homeowners associations "where a duly constituted community association board, upon reasonable investigation, in good faith and with regard for the best interests of the community association and its members, exercises discretion within the scope of its authority under relevant statutes, covenants and restrictions to select among means for discharging an obligation to maintain and repair a development's common areas,

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courts should defer to the board's authority and presumed expertise.” (*Lamden v. La Jolla Shores Clubdominium Homeowners Assn.* (1999) 21 Cal.4th 249, 265.)

“An exception to the business judgment rule's presumption exists in circumstances which inherently raise an inference of conflict of interest and the rule does not shield actions taken without reasonable inquiry, with improper motives, or as a result of a conflict of interest. [Citations.] But a plaintiff must allege sufficient facts to establish these exceptions. . . . In most cases, the presumption created by the business judgment rule can be rebutted only by affirmative allegations of facts which, if proven, would establish fraud, bad faith, overreaching or an unreasonable failure to investigate material facts. [Citation.] (*Lauckhart v. El Macero Homeowners Assn.* (2023) 92 Cal.App.5th 889, 906.)

The failure to allege facts sufficient to rebut the business judgment may be raised on demurrer. (*Lauckhart v. El Macero Homeowners Assn.* (2023) 92 Cal.App.5th 889, 906.)

Here, when taking the factual allegations in the FAC as true, plaintiffs allege facts sufficient to overcome the business judgment rule.

Defendant next argues the second cause of action for negligence and third cause of action for breach of fiduciary duty fail because it does not owe a duty to plaintiff.

A negligence cause of action requires plaintiff to establish: (1) duty, (2) breach, (3) proximate cause, and (4) damages. (*Kesner v. Superior Court* (2016) 1 Cal.5th 1132, 1142.) The elements for a breach of fiduciary duty claim are: (1) existence of a fiduciary duty, (2) breach, and (3) damages proximately caused by the breach. (*Meister v. Mensinger* (2014) 230 Cal.App.4th 381, 395.)

Here, when taking the factual allegations in the FAC as true, plaintiffs do not allege facts sufficient to state defendant owed them a duty or fiduciary duty. (*See, e.g., Ritter & Ritter, Inc. Pension & Profit Plan v. The Churchill Condominium Assn.* (2008) 166 Cal.App.4th 103, 119 and *Frances T. v. Village Green Owners Assn.* (1986) 42 Cal.3d 490, 503 and *Cohen v. Kite Hill Community Assn.* (1983) 142 Cal.App.3d 642, 654.) Nor does plaintiffs' opposition provide any legal authority to support their position that a duty exists here.

Accordingly, the demurrer is sustained with leave to amend as to the second and third causes of action.

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Defendant's motion to strike is denied as moot in light of the court sustaining the demurrer with leave to amend.

Plaintiffs shall file and serve an amended complaint on or before **July 27, 2026**.

5. S-CV-0056742 LANE, DAVID v. MITCHELL, CHRISTIE

Plaintiff's Motion to Disqualify Opposing Counsel, Attorney Paul Cass

Preliminary Matters

Plaintiff's request for judicial notice is granted.

Ruling on Motion

Plaintiff moves to disqualify defendant's opposing counsel, Paul Cass, on five independent grounds.

First, plaintiff argues Paul Cass previously represented plaintiff and now represents defendant who has adverse interests to plaintiff in direct violation of Rules of Professional Conduct, Rule 1.9.

Rules of Professional Conduct, Rule 1.9 provides "A lawyer who has formerly represented a client in a matter shall not thereafter represent another person in the same or a substantially related matter in which that person's interests are materially adverse to the interests of the former client unless the former client gives informed written consent." (Rules of Prof. Conduct, rule 1.9, subd. (a).) In other words, "an attorney will be disqualified only when there is "a 'substantial relationship' between the subjects of the prior and current representations." (*Victaulic Company v. American Home Assurance Company* (2022) 80 Cal.App.5th 485, 506.)

The substantial relationship test involves two questions: First, whether the attorney's relationship with the former client was direct and personal; if so, the court then determines "whether there is a connection between the two successive representations." (*Id.* at 506–07.) As to the latter question, "current and former matters are deemed substantially related only if they involve a substantial risk of a violation of a duty owed the former client." (*Id.* at 511–12.) Importantly, "[t]he presumption that former counsel possesses confidential information is triggered only if there is a substantial risk that confidential information would be used in the current representation, which occurs where it is reasonable to conclude that the information